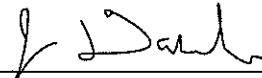


FIRST ENDORSEMENT

Executive Director, Jonathan Darche, Civilian Complaint Review Board to Deputy Commissioner Paul M. Gamble, Sr, Department Advocate's Office, July 30, 2024. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2022-24898 against Police Officer Jonathan Acquaviva, Tax Registry No. 934368. The case was conferenced on July 30, 2024, before Assistant Deputy Commissioner of Trials Jeffrey Adler, who approved the dismissal of the charges in return for the recommended negotiated penalty of a Command Discipline (B) and the forfeiture of ten (10) vacation days.



Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO. 2022-24898
BOOK & PAGE NO. Page 1 of 1
PERSONNEL ORDER NO.

RANK/TITLE POM	SURNAME, ACQUAVIVA	FIRST JONATHAN	M.I. J	COMMAND MIDTOWN PRECINCT NORTH
SHIELD NO. 3348	TAX REGISTRY NO. 934368	SOCIAL SECURITY NO.	DATE APPOINTED 07/01/2004	

RANK/NAME OF COMPLAINANT	COMMAND
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DATE OF CHARGES	DATE TRIAL COMMENCED	DATE TRIAL CONCLUDED
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TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1. Police Officer Jonathan ACQUAVIVA, on or about February 11, 2020, at approximately 1110, while assigned to MTN PCT and on duty, in the vicinity of West 54 Street and Ninth Avenue, New York County, engaged in conduct prejudicial to the good order, efficiency or discipline of the New York City Police Department, in that he issued a retaliatory summons to § 87(2)(b) without sufficient legal authority.	DISMISSED	B - COMMAND DISCIPLINE 1.00 - It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule B Command Discipline with the forfeiture of the amount of vacation days as indicated. VACATION DAYS 10.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.
2. Police Officer Jonathan ACQUAVIVA, on or about February 11, 2020, at approximately 1110, while assigned to MTN PCT and on duty, in the vicinity of West 54 Street and Ninth Avenue, New York County, abused his authority as a member of the New York City Police Department, in that he threatened § 87(2)(b) with the use of his Taser, without sufficient legal authority.	DISMISSED	


FIRST DEPUTY COMMISSIONER

8/1/24
DATE

POLICE COMMISSIONER'S APPROVAL

☒ Approved

☐ Disapproved

☐ Other Action (Describe)


POLICE COMMISSIONER

8/2/24
DATE

THIRD ENDORSEMENT

First Deputy Commissioner to Police Commissioner, July 30, 2024. Contents noted. I reviewed the negotiated plea in Disciplinary Case No. 2022-24898 against Police Officer Jonathan Acquaviva, Tax #934368, with the recommendation that the Charges and Specifications against Police Officer Acquaviva be dismissed and that Police Officer Acquaviva receive a Schedule "B" Command Discipline and forfeit ten (10) vacation days. Assistant Deputy Commissioner, Trials Jeff S. Adler reviewed this case and made a favorable recommendation pertaining to the proposed settlement; I concur. **RECOMMEND APPROVAL.**

TIK/pk

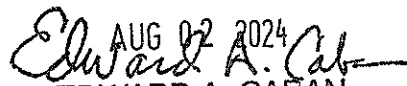


Tania I. Kinsella



FIRST DEPUTY COMMISSIONER

APPROVED


AUG 02 2024
EDWARD A. CABAN
POLICE COMMISSIONER